

		as a new authority cited in OCTA’s reply on the application of Section 1069. To confirm, the Miller Defendants’ surreply should not address any issues beyond the discrete issues identified in this ruling, which focus on only new arguments and authorities cited in OCTA’s reply brief, so that the Miller Defendants have an adequate opportunity to respond to those arguments. The Miller Defendants must file any surreply at least 9 court days before the continued hearing on this matter. OCTA shall give notice of this ruling. ISSUE #2 (Re Limitation of Evidence re Flooding) Plaintiff Orange County Transportation Authority (“OCTA”) has also filed a Motion for Ruling on Legal Issue Affecting Compensation Under Code of Civil Procedure Section 1260.040 (No. 2). (ROA #499.) As the parties previously stipulated that all three of the parties’ motions raise “same and/or substantially similar legal issues,” and “the Parties believe it is in their best interests, as well as to promote judicial efficiency, that the motions are heard at the same date and time” (ROA #521), the Court also CONTINUES this motion to October 29 at 2:00 p.m. in Department CX102. OCTA shall give notice of this ruling.
109	Gonzalez vs. Bear Down Brands, LLC 2023-01340515	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. But the Court has identified a minor new issue that must be addressed. Accordingly, Plaintiff Nicolas Gonzalez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of a further revised Class Notice and Proposed Order Granting Preliminary Approval. This is a putative wage-and-hour class action and PAGA matter. On 8/7/2023, Plaintiff Nicolas Gonzalez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Bear Down Brands, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) Defendant answered on 11/8/2023. (ROA #13.) On 1/8/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class/PAGA Action Settlement Agreement and Class Notice for

the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$149,250. The GSA includes a credit of \$37,250 for money already paid by Defendant to individual *Pick Up Stix* Settled Class Members allegedly as a result of this action and \$12,500 allocated for PAGA penalties.

On 5/14/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #70.) Counsel then submitted supplemental materials, including an Amended Class/PAGA Action Settlement Agreement ("Amended Settlement Agreement") and an amended Class Notice.

On 7/23/2026, the Court continued the second hearing on the motion and asked Class Counsel to address various issues. (ROA #77.) Counsel then submitted supplemental materials, including a further amended Class Notice.

Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

However, within five (5) court days, Class Counsel must submit a further amended Class Notice that correctly states that the Amended Settlement Agreement provides for only up to \$6,550 (not \$7,500) to be paid to the administrator for settlement administration costs.

Also within five (5) court days, Class Counsel must provide a further revised Proposed Order that includes the further amended Class Notice.

Upon these submissions, the Court will grant the Motion.

The Motion for Final Approval will be heard on January 28, 2027 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent

		(30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Zetterberg vs. Lyon Management Group, Inc. 2025-01473737	Motion for Preliminary Approval of Class Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a data breach class action settlement with a maximum cash claim amount of \$400,000. Upon submission of papers reflecting the revisions identified below, the motion will be granted as follows: \$3,000 for plaintiff's enhancement payment (not to exceed); \$115,000 for attorneys' fees and costs (not to exceed); \$14,500 for settlement administration costs (not to exceed); and <u>As to the claim form:</u> 1. Include the case name, case number, and court on each page in the document header. ROA 104 Ex. 1(C). <u>As to the "short" notice:</u> 2. There is a formatting error that must be corrected so that all text is fully legible. ROA 104 Ex. 1(A). 3. The "What if I don't want to participate in the Settlement?" section should be revised to exclude reference to objections. ROA 104 Ex. 1(A). Remove the sentences "If you want to object to the Settlement, submit an objection to the Settlement Administrator by [Objection Deadline]. You are not required to file your objection with the Court." Id. Remove the phrase "or object" from the last sentence. Id. <u>As to the proposed order for preliminary approval (ROA 74 Ex. D):</u> 4. The court previously ordered that counsel information should be removed from the caption page. ROA 94. This has not been